

25STCV13347 25STCV13347

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-03

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Case Number: 25STCV13347 Hearing Date: September 3, 2026 Dept: 512

HEARING DATE: Thurs., September 3, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Vazquez,

et al. v. 7th & Whitmer, L.P., et al.

CASE NUMBER: 25STCV13347

NOTICE: OK

PROCEEDINGS: MOTION

TO SUBSTITUTE SUCCESSOR IN INTEREST FOR DECEASED PLAINTIFF DONALD TRAHAN

MOVING PARTY: Plaintiffs

Nereida Vazquez, Ryan Cranford, Kassandra Montes, Cindy Fernandez, Florencia

Duran, Joseph McMenimen, Alula Tsadik, Shana Hauanio, Alisha Lucero, Rachel

Botello, Samantha Martinez, Yui Loui, Debra Matters, Joanne Sullivan, Amanda

“Anthony” Padilla, Donald Trahan, Andrew Amer, Stephen Guzman, Virginia

Narvaez, Richard Mclay, Deshawn Lawrence, Adam Collras, and Susan Hall

RESP. PARTY: None

MOTION TO SUBSTITUTE SUCCESSOR IN INTEREST

(Code Civ. Proc., § 377.31)

TENTATIVE RULING:

Plaintiffs Nereida Vazquez, Ryan

Cranford, Kassandra Montes, Cindy Fernandez, Florencia Duran, Joseph McMenimen, Alula Tsadik, Shana Hauanio, Alisha Lucero, Rachel Botello, Samantha Martinez, Yui Loui, Debra Matters, Joanne Sullivan, Amanda "Anthony" Padilla, Donald Trahan, Andrew Amer, Stephen Guzman, Virginia Narvaez, Richard Mclay, Deshawn Lawrence, Adam Collras, and Susan Hall's Motion to Substitute Successor in Interest for Deceased Plaintiff Donald Trahan is GRANTED.

Donnette Jean Trahan is substituted in as a Plaintiff in this action in place of deceased Plaintiff Donald Trahan.

Furthermore, the Court notes that previously the Court granted Plaintiffs' Motion for Leave to File a FAC and Deem the Attached FAC Filed on 4/1/26. However, the FAC must be filed separately to be reflected on the Court's docket. Based thereon, the Court orders that the FAC be filed within 10 days of this order.

Moving party is ordered to give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of September 1, 2026 ☐ Late ☒
None

REPLY: None
filed as of September 1, 2026 ☐
Late ☒ None

ANALYSIS:

I.

Background

On May 7, 2025, Plaintiffs Nereida

Vazquez, Ryan Cranford, Kassandra Montes, Cindy Fernandez, Florencia Duran, Joseph McMenimen, Alula Tsadik, Shana Hauanio, Alisha Lucero, Rachel Botello, Samantha Martinez, Yui Loui, Debra Matters, Joanne Sullivan, Amanda “Anthony” Padilla, Donald Trahan, Andrew Amer, Stephen Guzman, Virginia Narvaez, Richard Mclay, Deshawn Lawrence, Adam Collras, and Susan Hall (“Plaintiffs”) initiated this action against Defendant 7th & Whitmer, L.P.; FPI Management, Inc.; Vista West Properties, Inc.; Trillium Property Management, Inc.; and St. Joseph Center (“Defendants”) and Does 1-20.

On July 13, 2026, Plaintiffs filed the

instant Motion to Substitute Successor in Interest for Deceased Plaintiff Donald Trahan (the “Motion”).

On August 5, 2026, the Court granted

the parties’ Joint Stipulation and Order to Advance Hearing Date on Plaintiffs’ Motion. (8/5/26 Stip. & Order.)

To date, no Opposition to the Motion has been filed.

II.

Legal

Standard & Discussion

The Motion states that Plaintiff Donald Trahan (“Decedent”)

passed away on March 8, 2026, and Donnette Jean Trahan (“Trahan”) is Decedent’s daughter and successor in interest and moves to substitute in as a plaintiff in this action. (Motion, pp. 2-4, Trahan Decl., Exh. A.)

Code of Civil Procedure section 377.30 states, in pertinent

part, that “[a] cause of

action that survives the death of the person entitled to commence an action or proceeding passes to the decedent’s successor in interest.”

“On motion after the death of a person who commenced an

action or proceeding, the court shall allow a pending action or proceeding that

does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." (Code Civ. Proc., § 377.31.)

The person who seeks to commence an action or to continue a pending action as the decedent's successor in interest shall "execute and file an affidavit or a declaration under penalty of perjury under the laws of this state stating all of the following:

(1) The decedent's name.

(2) The date and place of the decedent's death.

(3) "No proceeding is now pending in California for administration of the decedent's estate."

(4) If the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest.

(5) Either of the following, as appropriate, with facts in support thereof:

(A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding."

(B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding."

(6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding."

(7) "The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct."

(b) Where more than one person executes the affidavit or declaration under this section, the statements required by subdivision (a) shall be modified as appropriate to reflect that fact.

(c) A certified copy of the decedent's death certificate shall be attached to the affidavit or declaration.

(Code Civ. Proc., § 377.32.)

"The court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." (Code Civ. Proc., § 377.33.)

Here, Trahan executed and filed a declaration under penalty of perjury stating: (1) the Decedent's name is Donald Trahan and is a named Plaintiff in this matter; (2) Decedent passed away on March 8, 2026, in Los Angeles County; (3) "[n]o proceeding is now pending in California for administration of [Decedent's] estate"; (4) Decedent died intestate, and Trahan is Decedent's sole surviving child and successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure); (5) "[n]o other person has a superior right to commence the action or proceeding or to be substituted for Decedent in the above-entitled action"; and (6) Trahan declares "under penalty of perjury under the laws of the State of California that the foregoing is true and correct." (Motion, Trahan Decl. ¶¶ 1-7.) Additionally, a certified copy of the Decedent's death certificate is attached to the Motion and declaration. (Motion, Trahan Decl., ¶ 2, Exh. A.)

Based on the foregoing, the Court finds the requirements of Code of Civil Procedure sections 377.30, 377.31, 377.32, and 377.33 are satisfied.

Thus, the Motion is GRANTED.

III.

Conclusion
& Order

Accordingly, Plaintiffs Nereida

Vazquez, Ryan Cranford, Kassandra Montes, Cindy Fernandez, Florencia Duran, Joseph McMenimen, Alula Tsadik, Shana Hauanio, Alisha Lucero, Rachel Botello, Samantha Martinez, Yui Loui, Debra Matters, Joanne Sullivan, Amanda “Anthony” Padilla, Donald Trahan, Andrew Amer, Stephen Guzman, Virginia Narvaez, Richard Mclay, Deshawn Lawrence, Adam Collras, and Susan Hall's Motion to Substitute Successor in Interest for Deceased Plaintiff Donald Trahan is GRANTED.

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